

## Multiple Choice

1. **Answer:** B

*Options:* A) No duty for artificial conditions.; B) A duty for natural conditions.; C) No duty for natural conditions.; D) No duty for active operations.

*Note:* Under common law, possessors of land do not owe a duty to undiscovered trespassers for natural conditions on the land, as there is no reasonable expectation for the trespasser to be present.

2. **Answer:** C

*Options:* A) There is no distinction between the two forms of legal reasoning.; B) Judges are appointed to interpret the law, not to make it.; C) It is misleading to pigeon-hole judges in this way.; D) Judicial reasoning is always formal.

*Note:* The correct answer is compelling because categorizing judges into rigid styles of reasoning oversimplifies the complex and nuanced decision-making processes they employ, neglecting the variability and context-dependent nature of judicial interpretation.

3. **Answer:** A

*Options:* A) Savigny; B) Kelsen; C) Austin; D) Hart; E) Bentham

*Note:* The correct answer is Savigny because he famously articulated the idea that jurisprudence serves as the guiding lens through which the law is understood and interpreted, emphasizing the connection between legal theory and practical application.

4. **Answer:** A

*Options:* A) The Nazi law in question was validly enacted.; B) The Nazi rule of recognition was unclear.; C) Hart agreed with Fuller's argument.; D) The court misunderstood the legislation.; E) Fuller misconstrued the purpose of the law.

*Note:* Hart's response emphasizes that the validity of law is determined by its adherence to procedural rules and that Nazi laws, despite their moral reprehensibility, were enacted through established legal processes, thus making them valid under legal positivism.

5. **Answer:** A

*Options:* A) Command, sovereign and legal remedy; B) Command, sovereign and authority; C) Command, sovereign and legal enforcement; D) Command, sovereign and legal responsibility; E) Command, sovereign and obedience by subject

*Note:* According to Austin's theory of law, the attributes of law are defined as commands issued by a sovereign authority, which are backed by the possibility of legal remedies or sanctions for non-compliance, thus making "command, sovereign and legal remedy" the most accurate response.

## True / False

6. **Answer:** True

*Options:* A) True; B) False

*Note:* The cold pursuit doctrine is not recognized as a valid exception to the warrant requirement because it lacks the necessary legal precedent and justification established by the courts for warrantless searches in exigent circumstances.

7. **Answer:** True

*Options:* A) True; B) False

*Note:* Contracts for crops and timber are classified under the UCC because they are considered goods that are movable at the time of identification to the contract, thereby falling within the scope of commercial transactions governed by the UCC.

8. **Answer:** False

*Options:* A) True; B) False

*Note:* The statement is false because the rule of recognition not only imposes duties on judges to apply and enforce legal norms but also confers the power to interpret and create legal principles within the framework of constitutional law.

9. **Answer:** False

*Options:* A) True; B) False

*Note:* The unlawful homicide committed by a minister abroad is not considered a public act (*jure imperii*) because such acts fall outside the scope of official duties and do not qualify for sovereign immunity.

10. **Answer:** False

*Options:* A) True; B) False

*Note:* The statement is false because the termination of a parent's custody rights and welfare benefits typically requires due process, which includes notice and an opportunity to be heard, in accordance with constitutional protections.

## Long Form Response

11. **Answer:** Mary's will stipulates a division of her estate that raises important legal considerations, particularly regarding the rights of her child, Joan, and the charitable organization, the Salvation Army. Under the terms of the will, Joan is to receive 50% of the estate outright, along with the income generated from the remaining 50% for her lifetime. However, the remainder of this portion is designated for the Salvation Army, contingent upon Joan not filing a timely petition contesting the devise to the charity. This creates a legal framework that balances the interests of both parties, highlighting the principles of testamentary freedom while also considering the potential for legal disputes regarding the enforceability of the will's provisions. Ultimately, if Joan chooses to contest the will, it could lead to significant delays and complications in the distribution of Mary's estate, underscoring the critical intersection of estate planning and constitutional law principles.

*Note:* The answer correctly identifies the legal implications of Mary's will by outlining the division of her estate that balances the interests of her child, Joan, with the intended charitable bequest to the Salvation Army, emphasizing the conditions under which these distributions occur.

12. **Answer:** In the context of auctions, particularly in asset liquidation scenarios like Fernandez's situation, the legal implications of bid retraction are significant and rooted in constitutional considerations. A bidder retains the right to retract their bid at any time until the hammer falls, a principle that underscores the nature of auctions as invitations to treat rather than binding contracts until completion. This flexibility allows bidders to reassess their commitments without legal penalty, reflecting the need for fairness and due process in commercial transactions. However, such retractions must be balanced against the expectations of other participants and the integrity of the auction process, which can raise constitutional questions regarding equitable treatment and the enforcement of contracts. Ultimately, the right to retract bids emphasizes the dynamic nature of auction law, highlighting the need for clear regulations that protect both bidders and sellers in the event of asset liquidation.

*Note:* correct because it accurately identifies the principle that bids in auctions are considered invitations to treat until finalized, allowing for retraction without penalty, which is crucial in understanding the legal and constitutional framework governing bid retraction during asset liquidation, as exemplified by Fernandez's case.